Tulsa County Clerk - EARLENE WILSON
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AMENDED BYLAWS

OF

SILVERWOOD HOMEOWNERS' ASSOCIATION, INC.

Property Description:

All of the SE/4 SW/4, Section 25, Township 18 North, Range 13 East of the Indian Base and Meridian according to the U.S. Government Survey thereof, City of Bixby, Tulsa County, State of Oklahoma.

and has caused the same to be surveyed, staked and platted into blocks, lots and streets and has designated the same as "SILVERWOOD", a subdivision in the city of Bixby, Tulsa County, State of Oklahoma.

AMENDED BYLAWS OF SILVERWOOD HOMEOWNERS' ASSOCIATION, INC.

WHEREAS, real property located within the Silverwood Homeowners' Association is subject to a certain Deed of Dedication and Restrictive Covenants ("Restrictive Covenants") which created the Silverwood Homeowners' Association, Inc. ("Silverwood HOA") for the general purpose of maintaining the common areas, including but without limitation the landscaping, fencing, reserves, and detention facilities, and to enhance the value, desirability and attractiveness of Silverwood;

WHEREAS, the Silverwood HOA is governed both by the Restrictive Covenants and the Bylaws of Silverwood Homeowners' Association, Inc. (the "Bylaws");

WHEREAS, pursuant to Section V of the Restrictive Covenants, the Board of Directors of the Silverwood HOA may establish assessments to be charged to the Members of the Silverwood HOA which shall be a lien upon the property against which the assessment is made;

WHEREAS, pursuant to Article XII of the Bylaws, said Bylaws may be amended by the Board of Directors;

WHEREAS, the Board of Directors of Silverwood HOA wishes to amend the Bylaws to establish assessments for annual dues and for assessments for violations of specific restrictions contained in the Covenants and Bylaws, in order to clarify certain inconsistencies and to generally enhance the value, desirability and attractiveness of Silverwood.

Therefore, on this 1st day of May, 2012, pursuant to Article XVIII of the Bylaws of Silverwood Homeowners' Association, said Bylaws are amended as follows:

I. **Assessments for Annual Dues:** HOA dues are used for the maintenance and general upkeep of the common areas (including but not limited to: mowing, landscaping and its maintenance, upkeep of the retention pond area), insurance, and maintenance and repair of the pool, buildings and fences. Current dues are $400 per annum and may be adjusted by a majority vote of a quorum of the Board of Directors of Silverwood HOA as needed due to changes in costs and needed repairs.

II. **Assessments for Violation of Specific Restrictions:** The Bylaws of Silverwood Homeowners' Association are amended to establish the following assessments to be taxed against Members for the violations as specified below. The assessments shall be payable by the Member and act as a lien upon the real property of the Member and foreclosable as such. The Assessments are as follows:

a. Vehicles – recreational or commercial vehicles, boats, trailers, auto parts, inoperative vehicles, or other equipment on a lot; unless in an enclosed garage.
   - Authority: Covenant Section VI, Para. 18
   - Assessments:

1st Notice – 24 hours to comply, $0
2nd Notice – 24 hours to comply, $50
3rd Notice – 24 hours to comply, $75
Final Notice – immediate compliance, $100 and legal action begins.

b. Yard – Yard is not being kept free of rubbish, litter, noxious weeds, plant beds weed free, lawn not edged, grass on sidewalks or street, etc.
- Authority: Covenant Section VI, Para. 21
- Assessments:
  1st Notice – Warning, $0
  2nd Notice – 7 days to comply, $25
  3rd Notice – 7 days to comply, $50
  Final Notice – 14 days to comply, $100 and legal action begins.

c. Garbage/Trash Cans, Clothes Lines – Garbage and trash cans not concealed from street view within 24 hours of collection. Clothes lines or poles not permitted.
- Authority: Covenant Section VI, Para. 19
- Assessments:
  1st Notice – immediate compliance, $0
  2nd Notice – immediate compliance, $25
  3rd Notice – immediate compliance, $50
  Final Notice – immediate compliance, $100 and legal action begins.

d. Signs – No signs are permitted in street view except realty signs.
- Authority: Covenant Section VI, Para. 23
- Assessments:
  1st Notice – immediate compliance, $0
  2nd Notice – immediate compliance, $25
  3rd Notice – immediate compliance, $50
  Final Notice – immediate compliance, $100 and legal action begins.

e. Animals – No animals, livestock or poultry of any kind, except 2 dogs, 2 cats or 2 other household pets, not for commercial purposes.
- Authority: Covenant Section VI, Para. 22
- Assessments:
  1st Notice – 24 hours to comply, $0
  2nd Notice – 24 hours to comply, $50
  3rd Notice – 24 hours to comply, $75
  Final Notice –7 days to comply, $100 and legal action begins.

f. Antennas – Exterior antennas for TV, CBS, etc. not permitted. Satellite dishes less than 20" may be installed out of street view.

- Authority: Covenant Section VI, Para. 1 to16
- Assessments:
  1st Notice – 24 hours to comply, $0
  2nd Notice – 24 hours to comply, $50
  3rd Notice – 24 hours to comply, $75
  Final Notice – 7 days to comply, $100 and legal action begins.

g. Any exterior building changes, outbuildings, fences, walls, Landscape changes – all must be approved by the Board of Directors of the Silverwood HOA or its Architectural Committee. No prefabricated buildings will be allowed on any lot in Silverwood.
- Authority: Covenant Section VI, Para. 17
- Assessments:
  1st Notice – 24 hours to comply, $0
  2nd Notice – 24 hours to comply, $50
  3rd Notice – 24 hours to comply, $75
  Final Notice – 7 days to comply, $150 and legal action begins.

h. Miscellaneous – all other violations (i.e. Unauthorized parking at the pool or nuisances that distract from the harmony and serentity of the neighborhood.)
- Authority: By-laws
- Assessments:
  1st Notice – 3 days to comply, $0
  2nd Notice – 24 hours to comply, $25
  3rd Notice – 24 hours to comply, $50
  Final Notice – 5 days to comply, $100 and legal action begins.

III. Additions to Architectural Committee Requirements. The Restrictive Covenants create the Architectural Committee and set forth certain requirements the Members of Silverwood HOA must comply with in order to make specific improvements to their real property and structures thereon. The Architectural Committee requirements as set forth in the Restrictive Covenants are unclear and ambiguous. Accordingly, the Board of Directors of the Silverwood HOA amends the Bylaws in an effort to clarify the ambiguities set forth in the Restrictive Covenants which create the Architectural Committee as set forth below:

a. All proposed alterations or improvements to any plot and/or the exterior of any structure in the Silverwood HOA must be submitted in writing to the Architectural Committee (or directly to the Board of Directors of the Silverwood HOA) or said alterations or improvements will not be allowed and will be in violation of the Restrictive Covenants and subject to removal and/or any other claims or remedies available at law or equity;

b. Within five business days after the submission of a written proposal for alterations or improvements to any plot and/or the exterior of any structure in the Silverwood, the Architectural Committee and/or the Board and the submitting homeowner will meet at a mutually agreeable time to fully discuss the proposed changes. The Architectural Committee or the Board of Directors of the Silverwood HOA will render its decision within five (5) business days of said meeting. If there is a failure to deny or approve said proposal within ten (10) business days from the date the Architectural Committee or the Board of Directors of the Silverwood HOA received said proposal, the proposal shall be deemed approved;

c. The requirements set forth must be complied with prior to the commencement of any alterations or improvements to any plot and/or the exterior of any structure in the Silverwood HOA;

d. The inconsistency contained in the Restrictive Covenants found at Section VI(1) which could have been read to indicate that the required approval of any alterations or improvements to any plot and/or the exterior of any structure in the Silverwood HOA by the Architectural Committee could be avoided if no suit to enjoin said alterations or improvements was filed prior to the completion of said alterations or improvements is clarified so as to require the submission of all proposed alterations or improvements to any plot and/or the exterior of any structure in the Silverwood HOA in writing to the Architectural Committee regardless of the pendency or the filing of any lawsuit.

IV. Savings Clause. All requirements and rules set forth in the Bylaws that are not modified or subject to amendment hereby shall remain in full force and effect and be binding upon the Silverwood HOA.

The above Amendments were approved and adopted pursuant to a majority vote of the Board of Directors of the Silverwood HOA as executed below on this 1ST day of May, 2012.

By: _____
Title: PRESIDENT

By: _____
Title: VICE PRESIDENT

By: _____
Title: Secretary

By: _____

Title: Treasurer

By: _____

Title: Member at Large